

by reason of the default of the authority, and every such order shall have effect accordingly; and

- (b) if it appears to the Board that the managers of that school have, for the purpose of maintaining and keeping efficient the school, incurred any expenses for which provision should have been made by the local education authority, pay to the managers such amount in respect of these expenses as in the opinion of the Board was properly incurred.

(2) Any sums paid by the Board of Education under this Act shall be a debt due to the Crown from the local education authority and, without prejudice to any other remedy, may be deducted from any sums payable to that authority on account of parliamentary grants.

(3) Any order or payment may be made under this Act as respects matters occurring whether before or after the passing thereof.

Construction
and short title.
2 Edw. 7. c. 42.

2. This Act shall be construed as one with the Education Act, 1902, and may be cited as the Education (Local Authority Default) Act, 1904.

CHAPTER 19.

An Act to amend the Law relating to Private Sidings on Railways. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Short title.

1. This Act may be cited as the Railways (Private Sidings) Act, 1904.

Facilities with
respect to pri-
vate sidings.
17 & 18 Vict.
c. 31.

2. The reasonable facilities which every railway company is required to afford under section two of the Railway and Canal Traffic Act, 1854, as amended or explained by any other Act, shall include reasonable facilities for the junction of private sidings or private branch railways with any railway belonging to or worked by any such company, and reasonable facilities for receiving, forwarding and delivering traffic upon and from those sidings or private branch railways.

Provisions as
to order under
the Act.

3. The Railway and Canal Commissioners may at any time review and rescind or vary any order made by them under this Act on the application of any party to the order, but, before such an application is entertained by the Commissioners, the applicant shall show to the Commissioners, in manner provided by rules to be made for the purpose under section twenty of the Railway and Canal Traffic Act, 1888, that there is a *prima facie* case for the application.

51 & 52 Vict.
c. 25.